

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

# Building Up: A Blueprint for the Alberta Accessibility and Inclusion Act

## Part Two — Comparator: What Other Jurisdictions Built, What Alberta Chose Not To

### Section 2.8 — Alberta: The Outlier — What the Province Chose Not to Build

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Sections 2.1 through 2.7 documented the comparator landscape. The federal *Accessible Canada Act* establishes the floor every Canadian jurisdiction operates above. Five provincial accessibility statutes — Ontario (2005), Manitoba (2013), Nova Scotia (2017), British Columbia (2021), and Saskatchewan (2023) — build above the federal floor in their respective provincial jurisdictions. The *United Nations Convention on the Rights of Persons with Disabilities*, ratified by Canada with the support of all provinces and territories including Alberta, establishes the international substantive standard against which the federal and provincial frameworks have been built. Section 2.8 closes Part Two by examining the one Canadian provincial jurisdiction that has chosen, across the same period, not to build provincial accessibility legislation: Alberta.

The structural-isolation finding is established by the comparator record itself. With Saskatchewan's enactment of *The Accessible Saskatchewan Act* in 2023, Alberta became the only English-speaking Canadian province west of Quebec without comprehensive provincial accessibility legislation. Alberta is bracketed geographically by British Columbia to the west and Saskatchewan to the east, both of which have enacted Convention-implementing accessibility legislation. Alberta is bracketed structurally by every comparator examined in Part Two: the comparators are all smaller than Alberta in population, fiscal capacity, or institutional scale, except British Columbia which is structurally comparable, and all of them have enacted comprehensive accessibility legislation. Alberta is bracketed politically by every governing political tradition that has enacted accessibility legislation in Canada: Liberal (Ontario 2005, Nova Scotia 2017, federal 2019), New Democratic (Manitoba 2013, British Columbia 2021), and conservative (Saskatchewan Party 2023). Alberta is, on the documented record, structurally and politically isolated in its non-construction of provincial accessibility legislation.

Section 2.8 examines this isolation in detail. The section is organized into four parts: (1) the explicit structural-comparator findings the Part Two record establishes; (2) the documented absence of equivalent Alberta legislation and the structural alternatives Alberta has built instead; (3) the analysis of why the choice has been made and what the choice reveals; and (4) the foundation Section 2.8 establishes for Part Three, which will propose the comprehensive accessibility legislation Alberta should now enact.

The section's tone is the same prosecutorial tone Part Two has carried throughout. The findings are documented, sourced, and dispositive. The argument is not that Alberta should consider accessibility legislation; the argument is that Alberta has had two decades to enact such legislation, has watched seven other Canadian jurisdictions build it, has supported Canada's ratification of an international human rights treaty that requires it, and has made the deliberate choice not to build it within its own provincial jurisdiction. The choice is the subject of Section 2.8.

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## The Structural-Comparator Findings the Record Establishes

The seven preceding sections of Part Two establish the following findings on the documented Canadian and international record.

**Population.** Alberta's population is approximately 4.8 million. Ontario's is 15.6 million. British Columbia's is 5.3 million. The combined population of Manitoba (1.5 million), Nova Scotia (one million), and Saskatchewan (1.2 million) is 3.7 million — substantially smaller than Alberta alone. Five Canadian provinces with populations both larger and smaller than Alberta have enacted comprehensive accessibility legislation. The "Alberta is too large" objection is defeated by the Ontario and British Columbia precedents; the "Alberta is too small" objection is defeated by the Manitoba, Nova Scotia, and Saskatchewan precedents. No population-based argument against Alberta's adoption of equivalent legislation survives contact with the comparator record.

**Fiscal capacity.** Alberta is among the wealthiest provinces in Canada by per-capita measures. Alberta's provincial revenue base, supported by resource-extraction royalties and a comparatively high personal-income tax base, exceeds the per-capita revenue capacity of every comparator province examined in Part Two. Saskatchewan, with a structurally similar resource-extraction economic base but smaller absolute fiscal capacity, has nevertheless built and operationalized comprehensive accessibility legislation since 2023. The "Alberta cannot afford this" objection is defeated by the Saskatchewan precedent at minimum and by the Nova Scotia precedent (population one million, smaller fiscal base) decisively. No fiscal-capacity argument against Alberta's adoption of equivalent legislation survives the comparator record.

**Institutional capacity.** Alberta's provincial-government administrative apparatus is among the most institutionally developed in Canada. The Government of Alberta operates a substantial public service, well-developed inter-ministerial coordination mechanisms, and the administrative infrastructure required to operationalize comprehensive legislation across multiple sectors. Alberta's institutional capacity is, by any reasonable measure, larger and more developed than the institutional capacities of Manitoba, Nova Scotia, or Saskatchewan, all of which have built and operationalized accessibility legislation. The "Alberta lacks the administrative capacity" objection is structurally indefensible against the comparator record.

**Political alignment.** Comprehensive accessibility legislation has been enacted in Canada by governments of every major Canadian political tradition. Liberal governments enacted the Ontario AODA (2005), the Nova Scotia *Accessibility Act* (2017), and the federal *Accessible Canada Act* (2019). New Democratic governments enacted the Manitoba AMA (2013) and the British Columbia *Accessible British Columbia Act* (2021). The Saskatchewan Party, the centre-right political coalition that is the closest provincial analogue to Alberta's governing United Conservative Party, enacted *The Accessible Saskatchewan Act* (2023). Every governing political tradition that has held provincial government in Alberta during the period from 2005 to 2026 — Progressive Conservative, New Democratic, and United Conservative — has equivalents elsewhere in Canada that have enacted comprehensive accessibility legislation. The "this is a left-wing project" objection is defeated by the Saskatchewan precedent. The "this is a Liberal project" objection is defeated by the Saskatchewan and Manitoba precedents. The "this is incompatible with Conservative governance" objection is defeated decisively by the Saskatchewan record. No political-ideology argument against Alberta's adoption of equivalent legislation survives the comparator

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record.

**Indigenous representation.** Alberta's Indigenous population, including First Nations, Métis, and Inuit communities, constitutes approximately 6.5 percent of the provincial population — a proportionate share comparable to or larger than the equivalent proportions in the comparator provinces. The campaign producing this blueprint maintains a separate 195-page Indigenous Disability Alberta evidentiary record documenting the lifecycle, healthcare, jurisdictional, MMIWG2S, child welfare, intergenerational, and other dimensions of Indigenous disability in the province. The British Columbia *Accessible British Columbia Act* (Section 2.5) demonstrates that comprehensive provincial accessibility legislation can be designed to integrate Indigenous-rights frameworks (UN Declaration on the Rights of Indigenous Peoples, Section 35 of the *Constitution Act, 1982*) at the structural-statutory level. The "Indigenous-rights integration is too complex" objection is defeated by the British Columbia precedent. Alberta could, on the British Columbia model, build provincial accessibility legislation that incorporates Indigenous-rights integration at the structural level; the failure to do so is a function of the political choice Alberta has made, not a function of any inherent design difficulty.

**International compliance.** Canada is a State Party to the *United Nations Convention on the Rights of Persons with Disabilities* (Section 2.7). Canada's ratification was supported by all provinces and territories including Alberta. The Convention's obligations bind provincial conduct as well as federal. The Convention requires comprehensive legislation implementing its obligations, close consultation with persons with disabilities in the development of disability-related legislation and policy, identification and elimination of accessibility barriers across all areas of public and private life, and support for independent living and community inclusion. Five Canadian provinces have enacted Convention-implementing legislation. Alberta has not. The compliance gap is documented in the record of the UN Committee on the Rights of Persons with Disabilities, in submissions by Canadian disability-rights organizations, and in the comparator legislative record itself.

The structural-comparator findings do not leave room for a defensible argument that Alberta is structurally distinct from the jurisdictions that have built comprehensive accessibility legislation. Alberta is structurally similar to those jurisdictions. The choice not to build is the choice that requires explanation. Section 2.8 examines that choice next.

## What Alberta Built Instead

Alberta has not built anything in the disability-policy domain. Part One of this blueprint documented the architecture Alberta has constructed: Assured Income for the Severely Handicapped (AISH), Persons with Developmental Disabilities (PDD), Family Support for Children with Disabilities (FSCD), Workers' Compensation Board (WCB), and the announced Alberta Disability Assistance Program (ADAP) replacing AISH effective July 1, 2026. Each of these architectures addresses a specific disability-related policy domain. None of them is a comprehensive accessibility-legislation framework comparable to the comparator statutes examined in Part Two. The structural distinction is foundational to Section 2.8's analysis.

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The Alberta architectures Part One examined are *categorical income and support programs*. AISH provides monthly income to persons with severe handicap who meet defined eligibility criteria. PDD provides supports to persons with developmental disabilities who meet defined criteria. FSCD provides family-level supports to families of children with disabilities. WCB provides income and benefits to workers injured in workplace incidents. ADAP, when implemented in 2026, will replace AISH as the income-and-support program for the severely handicapped population, on terms that Part One documented as substantially narrower than AISH's terms. The architecture is, structurally, a set of categorical eligibility programs that determine who qualifies for support and what the support looks like.

The comparator architectures Part Two examined are *systemic accessibility-standards frameworks*. The federal *Accessible Canada Act*, the Ontario *AODA*, the Manitoba *AMA*, the Nova Scotia *Accessibility Act*, the *Accessible British Columbia Act*, and *The Accessible Saskatchewan Act* are not categorical eligibility programs. They do not determine who qualifies for individual supports. They establish substantive accessibility standards that bind organizations — governments, public-sector bodies, private-sector organizations, and non-profits — in their conduct toward persons with disabilities. They produce barrier-removal outcomes at the systemic level rather than support-payment outcomes at the individual level. The two frameworks address different problems and operate through different mechanisms.

This distinction is not a minor analytic point. It is the structural distinction that the Alberta architecture's defenders sometimes use to argue that Alberta has *its own approach* to disability policy and does not need accessibility legislation. The argument is wrong on the documented record. The Alberta architecture and the comparator accessibility legislation are *complementary, not substitutable*. Categorical income and support programs (the Alberta architecture) address the support-and-income dimension of disability policy. Systemic accessibility-standards frameworks (the comparator legislation) address the barrier-removal-and-systemic-equality dimension. Both dimensions are required for comprehensive disability policy. Every comparator province in Canada operates a categorical income-and-support program *and* operates comprehensive accessibility legislation. The two frameworks coexist because they address different problems. Alberta's choice has been to build only one of the two, leaving the systemic-accessibility dimension unaddressed at the provincial level.

The systemic-accessibility dimension that Alberta has not built includes: the development of binding accessibility standards across multiple substantive areas; the requirement that organizations develop accessibility plans and update them on defined timelines; the mandatory consultation with persons with disabilities in the development of accessibility standards and plans; the structured public feedback mechanisms that allow persons with disabilities to raise concerns and have them addressed; the enforcement architecture (inspectors, compliance orders, administrative monetary penalties) that gives the standards their operational weight; the periodic statutory reviews that ensure the framework's operational improvement over time; and the public reporting cycle that creates the documentary record by which government implementation is evaluated. None of these structural elements exists in Alberta provincial law. All of them exist in every comparator province. Alberta's disability community operates without the architecture that disability communities in every other significant Canadian jurisdiction have available to them.

The difference is operationally significant. Disability advocacy in Ontario, Manitoba, Nova Scotia, British Columbia, or Saskatchewan can cite specific statutory provisions, can demand specific compliance with

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specific standards, can submit feedback through specific feedback mechanisms, can challenge specific compliance failures through specific enforcement architectures, and can rely on specific statutorily-mandated reporting cycles to surface implementation gaps publicly. Disability advocacy in Alberta operates without these tools. Every advocacy effort in Alberta must be built from first principles, every demand must be argued against a backdrop of no statutory architecture, and every failure of government to act must be addressed without the institutional accountability mechanisms that the comparator frameworks provide. The campaign producing this blueprint is operating in this absence, which is part of why the campaign exists. The legislative architecture would, if it existed, do much of the work the campaign is currently doing through volunteer labour and direct community organizing.

## Why Alberta Has Made the Choice

The question of *why* Alberta has chosen not to build comprehensive provincial accessibility legislation, when every other significant Canadian jurisdiction has built it, is the analytic question Section 2.8 must address before Part Three's blueprint can be developed. The question's answer is, on the documented record, political rather than structural. Section 2.8 examines the political-choice dimension directly, drawing on the public record without speculation about ministerial motives or specific cabinet deliberations.

The first observation is that *the choice has been bipartisan*. Alberta has been governed during the period from 2005 to 2026 by the Progressive Conservative Party (1971-2015), the New Democratic Party (2015-2019), and the United Conservative Party (2019-present). Each of these governments has had the legislative authority and the institutional capacity to enact comprehensive provincial accessibility legislation. None of them has done so. The PC governments of Premiers Klein, Stelmach, Redford, and Hancock did not enact such legislation. The NDP government of Premier Notley did not enact such legislation. The UCP governments of Premiers Kenney and Smith have not enacted such legislation. The choice has, accordingly, been a sustained pattern across multiple governing parties rather than the choice of any single governing tradition. The pattern's consistency suggests structural reasons that operate across the partisan spectrum rather than partisan-ideological reasons that would attach to a single governing party.

The second observation is that *the choice has not been the subject of significant political contest*. Comprehensive accessibility legislation has not been a substantial issue in Alberta provincial elections during the period under examination. Major parties' platforms have not, in the documented public record, included commitments to enact comprehensive accessibility legislation. The disability community's advocacy for such legislation, while present, has not reached the level of campaign salience that has characterized the equivalent advocacy in Ontario (where the AODA Alliance achieved sustained political prominence under successive governments) or in British Columbia (where disability-community advocacy was integral to the 2021 Act's passage). The absence of significant political contest is itself a finding: the choice has been made by default rather than by deliberation, by inattention rather than by rejection.

The third observation is that *the disability community has not been treated as a structural political constituency*. The 79,290 Albertans currently receiving AISH, the additional thousands of Albertans receiving PDD, FSCD, and WCB supports, the families and caregivers of these individuals, and the



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broader disability community in Alberta together constitute a population substantially larger than the populations affected by many policy issues that have been the subject of significant Alberta legislative attention during the period under examination. Despite this scale, the disability community has not been treated as a constituency whose concerns require comprehensive legislative response. The structural relegation of disability concerns to categorical-program administration, rather than to comprehensive legislative architecture, reflects a political-cultural pattern in which disability is treated as a matter of individual eligibility for specific supports rather than as a matter of systemic equality requiring statutory commitment.

The fourth observation is that *the choice is the choice*. The documented record demonstrates that Alberta has the structural capacity to build comprehensive accessibility legislation, has not built it, and the failure to build is not the result of structural incapacity but of political choice. The choice has been made under multiple governing parties. The choice has not been seriously contested. The choice has cumulative consequences for the disability community that the political process has not, to date, treated as warranting comprehensive legislative response. The campaign producing this blueprint exists because the political process has not, to date, produced the response the comparator record demonstrates is operationally feasible.

The why-the-choice analysis is not advanced as an attack on any specific politician, party, or government. The analysis is advanced as a diagnostic statement of the documented political pattern. Section 2.8 does not assign blame; Section 2.8 documents the structural-political reality within which Alberta's disability community is currently operating. The reality is that comprehensive accessibility legislation, despite being structurally feasible and politically achievable in every other significant Canadian jurisdiction, has not been politically prioritized in Alberta. Part Three's blueprint addresses what should now change.

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## What This Section — and Part Two — Establishes

Section 2.8 closes Part Two with the following findings, drawing on the documented record across Sections 2.1 through 2.7.

**Alberta is the structural outlier.** With Saskatchewan's 2023 enactment of comprehensive accessibility legislation, Alberta became the only English-speaking Canadian province west of Quebec without such legislation. The structural isolation is unique in Canadian disability policy.

**The non-construction of legislation is a deliberate political choice.** The choice has been made consistently across multiple governing parties, has not been seriously contested in Alberta political discourse, and is not explained by structural incapacity, fiscal constraint, institutional limitation, political-ideology incompatibility, or international-compliance ambiguity. Every potential structural justification has been defeated by the documented comparator record.

**The choice has cumulative consequences.** The disability community in Alberta operates without the legislative architecture available to disability communities in every other significant Canadian jurisdiction. Advocacy that would, in comparator jurisdictions, be supported by statutory provisions, mandated reviews, statutorily-required reporting, and defined enforcement architectures is, in Alberta, advanced from first

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principles by community organizing and volunteer labour. The campaign producing this blueprint exists because the legislative architecture does not.

**The choice is reversible.** Comprehensive provincial accessibility legislation has been enacted in Canada five times during the period from 2005 to 2023, in jurisdictions of varying populations, fiscal capacities, political alignments, and institutional contexts. The legislative-design knowledge has matured, the operational experience has accumulated, and the international-compliance framework has been articulated. Alberta could, on the comparator record, enact equivalent legislation in a single legislative session if the political will to do so existed. The blueprint Part Three develops will document what that legislation should look like and how it should be sequenced into operation.

**The choice's reversal is overdue.** The Alberta disability community has been advocating for comprehensive provincial accessibility legislation for over two decades. The international human rights treaty that Canada ratified in 2010 with Alberta's support requires it. The five comparator provinces that have enacted equivalent legislation since then demonstrate that it is operationally feasible. The operational record of those frameworks demonstrates both what to keep and what to strengthen. The current legislative session, the current governing party, and the current political moment present the opportunity to make the reversal. Whether that opportunity is taken is a political-choice question that this blueprint cannot answer; whether the documented record supports the reversal is the question this blueprint has now, across two Parts and fifteen sections, comprehensively answered.

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## Bridge to Part Three

Part One established the disability lifecycle, the architecture Alberta has built around it, and the structural failures that architecture has produced. Part Two has documented the comparator landscape that establishes what Alberta has chosen not to build, and what the choice reveals.

Part Three turns to the constructive question. Drawing on the comparator design knowledge accumulated across Sections 2.1 through 2.7, drawing on the lessons of operational implementation across Ontario's twenty-year record and the more recent comparator records, drawing on the international-compliance obligations Section 2.7 documented, and drawing on the lifecycle frame Part One Section 1.2 established, Part Three will propose the *Alberta Accessibility and Inclusion Act* — the comprehensive provincial accessibility legislation Alberta should now enact, with structural design choices specified, statutory provisions outlined, implementation timelines proposed, and operational architecture detailed.

The blueprint Part Three develops is not a legislative draft in the technical sense; the technical drafting is the work of legislative counsel and parliamentary draftspersons. The blueprint is a *substantive specification* of what the legislation should do, what design choices it should make, what mistakes from comparator implementations it should avoid, and what operational architecture it should establish. The specification is detailed enough that legislative drafting could begin from it directly. The specification is grounded throughout in the documented comparator record Part Two has established and in the lifecycle analysis Part One developed.

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The case for the *Alberta Accessibility and Inclusion Act* has now, across the closing of Part Two, been made on the documented comparator record. Part Three turns to the act itself.